

HOUSE No. 1056

The Commonwealth of Massachusetts

PRESENTED BY:

Thomas M. Stanley

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the conservation of striped bass.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Thomas M. Stanley</i>	<i>9th Middlesex</i>	<i>1/15/2025</i>

HOUSE No. 1056

By Representative Stanley of Waltham, a petition (accompanied by bill, House, No. 1056) of Thomas M. Stanley relative to the Atlantic striped bass. Environment and Natural Resources.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 907 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the conservation of striped bass.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 130 of the General Laws is hereby amended by striking out Section 100A, as
2 appearing in the 2022 Official Edition, and inserting in place thereof the following 2 sections:-

3 Section 100A. (a) Commercial harvesting and sale of wild striped bass shall be prohibited
4 in the Commonwealth except as provided for in section 100A½. The director, with the approval
5 of the marine fisheries advisory commission, shall adopt rules and regulations relative to the
6 taking and possession of wild striped bass by recreational angling.

7 (b) All aquaculture raised striped bass for sale in the commonwealth shall bear the tag of
8 the grower or distributor of the fish.

9 (c) Whoever violates any rules or regulations made pursuant to this section shall be
10 punished by a fine of not less than \$200 for each fish taken or possessed for the first violation,

11 five hundred dollars for each fish taken or possessed for the second violation and for each
12 subsequent violation shall be fined one thousand dollars for each fish taken or possessed or
13 imprisoned not more than sixty days or both. No part of any fine imposed for the taking or
14 possession of any striped bass in violation of any such regulation shall be remitted.

15 Section 100A½. (a) Commercial harvesting and sale of wild striped bass shall be
16 permitted for individuals owning commercial licenses on December 31, 2024 who can
17 historically demonstrate over the preceding 5 years that they have averaged an annual landing
18 and sale of more than 1000 pounds of striped bass based on records made available to the
19 Massachusetts Division of Marine fisheries. Provided further, however, the Director of the
20 Massachusetts Division of Marine Fisheries may provide hardship relief from this limit if a
21 license holder for the past five years can demonstrate a legitimate hardship causing him or her to
22 land less than an average of 1000 pounds.

23 (b) The Director of the Massachusetts Division of Marine Fisheries shall calculate the
24 commercial catch limit based on the 5 year average annual landings and sale of pounds of striped
25 bass by said commercial fishermen as so defined in subsection (a).

26 (c) Should a commercial license holder retire his license, the Massachusetts Division of
27 Marine Fisheries shall reduce the total commercial take allowed by the average landings of said
28 individual operating under said license for the previous five years.

29 (d) In no case shall any new commercial licenses be granted or shall licenses be
30 transferred or sold.

31 (e) If a commercial striped bass license holder fails to report no catch or if they report not
32 catching any striped bass for two consecutive years, their striped bass commercial license shall
33 not be renewed.

34 (f) All Commercial Fishermen shall annually be required to report their catch to the
35 Massachusetts Division of Marine Fisheries within 90 days after the close of the commercial
36 striped bass season. Failure to comply with this requirement shall cause said individuals license
37 not to be renewed for the next season. Provided further, however, the Director of the
38 Massachusetts Division of Marine Fisheries may waive any penalties associated with a late filing
39 of said report if said commercial fisherman can demonstrate a legitimate hardship.

40 (g) Nothing in this act shall preclude the Director of Marine Fisheries or the Marine
41 Fisheries Advisory Board from limiting, curtailing or suspending the recreational or commercial
42 catching and landing of striped bass should the fishery conditions worsen that the fishery is in
43 jeopardy of sustaining itself.

44 (h) Notwithstanding any special or general law to the contrary, the issuing of commercial
45 striped bass licenses shall cease as of January 1, 2029.